

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1588

By: Hardin

AS INTRODUCED

An Act relating to the Oklahoma Conservation Commission; creating the Spring Creek Watershed Study Act; establishing legislative intent; directing Conservation Commission to undertake certain water quality plan; directing report; providing for cooperation with certain third parties; authorizing the acceptance of certain funds; creating the Spring Creek Watershed Study Cash Fund Revolving Fund; establishing fund purpose; providing source of funds; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-7-111 of Title 27A, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Spring Creek Watershed Study Act".

B. The Legislature finds that:

1. Increasing pressure from agriculture and residential development as well as stream bank erosion and other activities have led to declining water quality levels in the Northeast Oklahoma

1 Watershed known as Spring Creek located in Cherokee, Delaware, and
2 Mayes counties near Kansas, Oklahoma, resulting in increased concern
3 by the residents of the Spring Creek area and citizens of Oklahoma
4 as a whole as to the continued health of the watershed. The once
5 pristine stream is a prime example of how many similar high quality
6 Ozark waterbodies that draw millions of visitors to the area each
7 year, support water supplies for growing urban centers in Oklahoma,
8 and provide habitat for important wildlife and fisheries resources
9 are threatened without cooperative, voluntary protective action by
10 local communities and other stakeholders;

11 2. Improved voluntary land management practices including soil
12 conservation practices, riparian restoration and protection,
13 reforestation, streambank livestock exclusion, and other methods of
14 stewardship have great potential to improve and protect the quality
15 of water in the Spring Creek watershed while improving the
16 ecological health of the area; and

17 3. It is in the interest of the citizens of this state as a
18 whole and the residents of the Spring Creek watershed that the
19 Oklahoma Conservation Commission, in partnership with other local,
20 state, and federal agencies and nongovernmental organizations
21 undertake a comprehensive water quality study of Spring Creek to
22 determine the best course of action to protect and improve the
23 health of the aquatic habitat in the watershed.

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1 C. It is the intent of the Legislature that the findings of
2 this study will be used to direct implementation of voluntary,
3 incentive-based conservation practices by the Commission in
4 partnership with other local, state, and federal agencies and
5 subject to availability of resources, in the Spring Creek watershed
6 to protect and improve the aquatic habitat and water quality in the
7 area.

8 SECTION 2. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 3-7-113 of Title 27A, unless
10 there is created a duplication in numbering, reads as follows:

11 A. 1. The Oklahoma Conservation Commission shall undertake a
12 comprehensive watershed-based water quality plan designed to improve
13 and protect the water quality and aquatic habitat in the Spring
14 Creek watershed through the utilization of voluntary, incentive-
15 based programs.

16 2. On or before June 1, 2026, the Commission shall publish an
17 electronic report of the findings. The Commission may, from time to
18 time, update such findings as conditions change and pertinent
19 information becomes available.

20 B. The Commission may contract and cooperate with the Natural
21 Resources Conservation Service of the United States Department of
22 Agriculture and the U.S. Environmental Protection Agency to conduct
23 activities provided for in this section.

1 C. The Commission may apply for and accept grants, gifts, or
2 other sources of public and private funds to carry out the purposes
3 of the Spring Creek Watershed Study Act.

4 SECTION 3. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 3-7-114 of Title 27A, unless
6 there is created a duplication in numbering, reads as follows:

7 There is hereby created in the State Treasury a revolving fund
8 for the Oklahoma Conservation Commission to be designated the
9 "Spring Creek Watershed Study Cash Fund Revolving Fund". The fund
10 shall be a continuing fund, not subject to fiscal year limitations,
11 and shall consist of all monies received by the Commission from
12 appropriations by the Legislature to the fund, and any money
13 received as gifts, grants, or other contributions from public or
14 private sources provided for the purpose of implementing the Spring
15 Creek Watershed Study Act. All monies accruing to the credit of the
16 fund are hereby appropriated and may be budgeted and expended by the
17 Commission for the purpose provided for in this act. Expenditures
18 from the fund shall be made upon warrants issued by the State
19 Treasurer against claims filed as prescribed by law with the
20 Director of the Office of Management and Enterprise Services for
21 approval and payment.

22 SECTION 4. This act shall become effective November 1, 2025.
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